



CHAPTER cxli.

An Act to confirm certain Provisional Orders of the A.D. 1911.
Local Government Board relating to Brighton Epsom
(Rural) Exeter Liverpool Pontypridd and the East
Dean and United Districts Joint Hospital District.

[18th August 1911.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and
the same are hereby confirmed and all the provisions thereof
shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's
Provisional Orders Confirmation (No. 2) Act 1911. Short title.

A.D. 1911.

SCHEDULE.

BOROUGH OF BRIGHTON.

*Brighton
Order.*

*Provisional Order for altering the Brighton
Corporation Act, 1901.*

To the Mayor Aldermen and Burgesses of the Borough of
Brighton;—

And to all others whom it may concern.

1 Edw. 7.
c. ccxxiv.

WHEREAS the Borough of Brighton (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Brighton Corporation Act 1901 (herein-after referred to as "the Local Act") as altered by a Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order are in force in the Borough;

And whereas by Section 28 of the Local Act (which Section is comprised in Part III. of that Act) the Corporation were empowered subject to the provisions of that Act to make and maintain the street works described in the said Section which street works included the widening of the Marine Parade and the narrowing of the Madeira Road more particularly described in subsection (1) of the said Section and herein-after referred to as "the Marine Parade and Madeira Road works";

And whereas by Section 30 of the Local Act it is provided that if the works authorised by Part III. of that Act are not completed within ten years from the passing of that Act (herein-after referred to as "the prescribed period") the powers by that Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed;

And whereas the prescribed period will expire on the Ninth day of August One thousand nine hundred and eleven and it is expedient that the period for the completion of the Marine Parade and Madeira Road works be extended;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxli.]
Provisional Orders Confirmation (No. 2) Act, 1911.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

A.D. 1911.

*Brighton
Order.*

38 & 39 Vict.
c. 55.

Art. I. Section 30 of the Local Act shall have effect as if in relation to the Marine Parade and Madeira Road works the period of twenty years from the passing of the Local Act were substituted in that Section for the period of ten years from the passing of that Act.

Extension of
period for
completion
of street
works.

Art. II. This Order may be cited as the Brighton Order 1911.

Short title.

Given under the Seal of Office of the Local Government Board
this Sixth day of April One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

RURAL DISTRICT OF EPSOM.

*Provisional Order to enable the Rural District Council
of Epsom to put in force the Compulsory
Clauses of the Lands Clauses Acts.*

*Epsom Rural
Order.*

To the Rural District Council of Epsom;—

And to all others whom it may concern.

WHEREAS the Rural District Council of Epsom (herein-after referred to as "the Council") require to purchase and take the land described in the schedule hereto for the construction of additional works for the disposal of the sewage of the contributory place of Cobham:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

38 & 39 Vict.
c. 55.

Art. I. The Council shall be empowered to put in force with reference to the land described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Compulsory
powers of
purchase.

Art. II. This Order may be cited as the Epsom Rural Order 1911.

Short title.

[Ch. cxli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

*Epsom Rural
Order.*

The SCHEDULE above referred to.

Parish of COBHAM in the County of SURREY.

No. on deposited Plans.	Description of Land.	Owners or reputed Owners.	Lessee or reputed Lessee and Occupier.
1	Piece of arable land containing 6A. 0R. 22P. or thereabouts.	Frederick Hill Henry Crawter Thomas Crawter Lydia Constance Crawter.	Albert Henry Burnett.

Given under the Seal of Office of the Local Government Board
this Twenty-first day of March One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

CITY OF EXETER.

Exeter Order. Provisional Order to enable the Urban Sanitary Authority for the City and County of the City of Exeter to put in force the Compulsory Clauses of the Lands Clauses Acts.

To the Mayor Aldermen and Citizens of the City and County of
the City of Exeter ; —

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Citizens of the City and County of, the City of Exeter acting by the Council as the Urban Sanitary Authority for that City and County (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto for the following purposes that is to say :—

- (1) The lands described in Part I. of the said schedule for the purpose of widening opening enlarging or otherwise improving Well Street :
- (2) The lands described in Part II. of the said schedule for the purpose of widening opening enlarging or otherwise improving the street called Blackboy Road :

Now therefore We the Local Government Board in pursuance of
38 & 39 Vict. the powers given to Us by Section 176 of the Public Health Act 1875
c. 55. and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order the
following provisions shall have effect viz.,—

Art. I. The Corporation shall be empowered to put in force with
reference to the lands described in the schedule hereto subject to the
Compulsory powers of purchase.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxli.]
Provisional Orders Confirmation (No. 2) Act, 1911.

continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them. A.D. 1911.
Exeter Order.

Art. II. This Order may be cited as the Exeter Order 1911. Short title.

The SCHEDULE above referred to.

Parish of EXETER in the City and County of the City of EXETER.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
PART I.			
WELL STREET IMPROVEMENT.			
1	Court (Woodbine Cottages).	William Bunclark -	William Hudder Bertram Baker Helen Larcombe.
2	House (No. 42) - -	Ditto - -	Void.
3	House - - -	Ditto - - -	Bertram Baker.
4	Ditto - - -	Ditto - - -	William Hudder Helen Larcombe.
5	Garden - - -	Ditto - - -	William Hudder.
6	Washhouse w.c.'s and yard.	Ditto - - -	Bertram Baker William Hudder Helen Larcombe.
7	Garden - - -	Edward Bunclark -	Henry Thomas Snell.
8	Ditto - - -	Ditto - - -	Frank Heal Bowden.
9	Courtyard and w.c. -	Ditto - - -	Henry Thomas Snell Frank Heal Bowden Walter John Godbeer.
10	Passage - - -	Ditto - - -	Henry Thomas Snell Walter John Godbeer.
11	House - - -	Ditto - - -	Henry Thomas Snell.
12	House and garden (No. 41).	Ditto - - -	Walter John Godbeer.
13	House garden and w.c. (No. 40).	Ditto - - -	William Henry Ash.
14	House - - -	Ditto - - -	Frank Heal Bowden.
15	Court (Clarence Place)	Edward Bunclark Isabella London.	Henry John Vosper Henry Thomas Snell William Henry Ash Thomas Jones Walter John Godbeer Frank Heal Bowden.

[Ch. cxli.] *Local Government Board's* [1. & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911,
Exeter Order.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
16	House garden and cellar (No. 39).	Isabella Lendon - - -	Henry John Vosper.
17	House garden and w.c.	Ditto - - -	Thomas Jones.
18	House garden w.c. and courtyard (No. 37a).	Susannah Agnes Wheaton	William Henry Webber.
19	House garden w.c. and cellar (No. 38).	Ditto - - -	Maud Rowland.

In respect of mains wires posts pipes sewers &c. the Postmaster-General Exeter Gas Light and Coke Company the National Telephone Company Limited the Corporation.

PART II.

BLACKBOY ROAD IMPROVEMENT.

1	House and garden (No. 111).	Ellen French - - -	Ellen French.
2	House garden and store (No. 110).	Bessie Hicks - - -	Bessie Hicks.
3	Shop garden and stores (No. 109).	John Hinton Lake - -	Fred Parkhouse.
4	Yard - - -	Ellen French Bessie Hicks	Ellen French Bessie Hicks.
5	Court (Salem Place) -	Thomas Dymond Frank Rowland Bradbeer Sarah Caroline Norton Susan Searle Charles Coldridge Joseph E. Kellow.	Susan Luckham William Charles Lyne Jessie Pinn Susan Searle Emma Tuck William Fletcher.
6	House and gardens (No. 1 Salem Place).	Thomas Dymond - - -	Susan Luckham.
7	House and gardens (No. 2 Salem Place).	Frank Rowland Bradbeer.	William Charles Lyne.
8	House and gardens (No. 3 Salem Place).	Sarah Caroline Norton -	Jessie Pinn.
9	House and gardens (No. 4 Salem Place).	Susan Searle - - -	Susan Searle.
10	House and gardens (No. 5 Salem Place).	Charles Coldridge - -	Emma Tuck.
11	Shop and w.c. (No. 108)	Thomas Dymond - - -	Frederick John Chamberlain.
12	Yard - - -	Ditto - - -	Susan Luckham Frederick John Chamberlain.
13	Passage - - -	Thomas Dymond Frank Rowland Bradbeer.	Susan Luckham William Charles Lyne Frederick John Chamberlain.
14	Shop house and yard (No. 107).	Frederick John Chamberlain.	Eliza Western.
15	House yard w.c. and workshop (No. 106).	Sydney William Cox -	Frederick Day.
16	House yard w.c. and shed (No. 105).	Sarah Short - - -	Void.
17	House yard w.c. and cellars (No. 104).	The Trustees of George Finch deceased namely Bertha Finch Clara Wippell Arthur George Finch.	Lavinia Lang.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxli.]
Provisional Orders Confirmation (No. 2) Act, 1911.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.	A.D. 1911. <i>Exeter Order.</i>
18	House yard w.c. and cellars (No. 103).	Richard John Morris	James Kerslake.	
19	House yard w.c. and cellars (No. 102).	Ditto	William Salter Agnes Hawkins.	
20	Shop house and cellars (No. 101) Telephone attachment.	The Trustees of George Finch deceased (as before).	Lucy McLeod Sarah Wilson National Telephone Company Limited.	
21	House garden and cellars.	Ditto	Frederick Short.	
22	Yard	Ditto	Lucy McLeod Sarah Wilson Frederick Short.	
23	Washhouse garden and w.c.	Ditto	Lucy McLeod Sarah Wilson.	
24	Back passage	Sarah Caroline Norton Susan Searle Charles Coldridge.	Jessie Pinn Susan Searle Emma Tuck.	

In respect of mains wires posts pipes sewers &c. the Postmaster-General Exeter Gas Light and Coke Company the National Telephone Company Limited the Corporation.

Given under the Seal of Office of the Local Government Board
this Tenth day of April One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

CITY OF LIVERPOOL.

*Provisional Order for altering the Liverpool Improvement
Act 1867 the Liverpool Corporation Act 1902 the
Liverpool Corporation (General Powers) Act 1905 and the
Liverpool Corporation (Streets and Buildings) Act 1908.*

*Liverpool
Order.*

To the Lord Mayor Aldermen and Citizens of the City of
Liverpool;—

And to all others whom it may concern.

WHEREAS the City of Liverpool (herein-after referred to as "the
City") is an Urban Sanitary District of which the Lord Mayor
Aldermen and Citizens acting by the Council (herein-after referred to

[Ch. cxli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

*Liverpool
Order.*

30 & 31 Vict.
c. clxviii.
2 Edw. 7.
c. ccxl.
5 Edw. 7.
c. clxxvii.
8 Edw. 7.
c. clxv.

as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Liverpool Improvement Act 1867 the Liverpool Corporation Act 1902 the Liverpool Corporation (General Powers) Act 1905 and the Liverpool Corporation (Streets and Buildings) Act 1908 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and all of which Acts are herein-after collectively referred to as "the Local Acts") are in force in the City;

And whereas the Corporation were empowered by Section 34 of the Act of 1867 to prescribe the line of building in any street and by Section 30 of the Act of 1902 to prescribe the width of new streets in certain cases and the said Sections provided for the payment by the Corporation of compensation for loss or damage arising out of the exercise by the Corporation of their powers under those sections;

And whereas by the Act of 1908 further powers were conferred on the Corporation with respect to streets and buildings;

And whereas by Section 72 of the Act of 1867 the Corporation were empowered to borrow money for the purposes of the Act of 1867 including the purposes of Section 34 of that Act and by Section 30 of the Act of 1902 it was provided that moneys payable by the Corporation under that Section should be defrayed out of moneys borrowed or to be borrowed under Section 72 of the Act of 1867;

And whereas the Corporation were empowered by Section 20 of the Act of 1905 to borrow further moneys for the purposes of Section 34 of the Act of 1867 and by Section 30 of the Act of 1908 to borrow and apply to the purposes of the Act of 1908 any moneys which the Corporation were authorised to borrow under Section 20 of the Act of 1905;

And whereas by Section 21 of the Act of 1905 provision was made for the raising and repayment of the moneys which the Corporation were authorised to borrow under the powers of that Act;

And whereas it is expedient that the Corporation be empowered to borrow further moneys for the purposes of Section 34 of the Act of 1867 Section 30 of the Act of 1902 and the Act of 1908;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxli.]
Provisional Orders Confirmation (No. 2) Act, 1911.

Local Acts shall be altered so that the following provisions shall take effect that is to say:—

A.D. 1911.
Liverpool
Order.

Art. I.—(1) The Corporation may with the sanction of the Local Government Board borrow such sum or sums as may from time to time be required not exceeding in the whole the sum of two hundred thousand pounds for the purposes of Section 34 of the Act of 1867 Section 30 of the Act of 1902 and the Act of 1908 in addition to the sums already authorised to be borrowed for those purposes.

Additional
borrowing
powers for
certain pur-
poses of
Local Acts.

(2) Any sums borrowed in pursuance of subdivision (1) of this Article shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the provisions of Section 21 of the Act of 1905 shall apply to any sum the borrowing of which by the Corporation has in pursuance of subdivision (1) of this Article been sanctioned by the Local Government Board.

Art. II. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to the inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of an inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Inquiries and
expenses.

Art. III. This Order may be cited as the Liverpool Order 1911.

Short title.

Given under the Seal of Office of the Local Government Board
this Sixth day of April One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

[Ch. cxli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

URBAN DISTRICT OF PONTYPRIDD.

*Pontypridd
Order.*

*Provisional Order for altering the Pontypridd Urban District
Council Act 1903 and the Pontypridd Urban District
Council Act 1907.*

To the Urban District Council of Pontypridd;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Pontypridd (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Pontypridd (herein-after referred to as "the District");

3 Edw. 7.
c. cxv.
7 Edw. 7.
c. lxxiii.

And whereas the unrepealed provisions of the Pontypridd Urban District Council Act 1903 and the Pontypridd Urban District Council Act 1907 (which Acts are herein-after together referred to as "the Local Acts" and each of which Acts is herein-after referred to as the Act of the year in which it was passed) are in force in the District;

1 Edw. 7.
c. cxxxix.

And whereas by the Pontypridd Electric Lighting Order 1901 which was confirmed by the Electric Lighting Orders Confirmation (No. 6) Act 1901 the Council were authorised to supply electrical energy within the District and by the Local Acts further provision was made in relation to and for the purposes of the electricity undertaking of the Council;

45 & 46 Vict.
c. 56.

And whereas by subsection (1) of Section 19 of the Act of 1907 it is provided that in calculating the amount which the Council may borrow under the Public Health Act 1875 the sums borrowed or to be borrowed by the Council for the purposes of the Electric Lighting Act 1882 or of the Pontypridd Electric Lighting Order 1901 shall not be reckoned;

And whereas by Section 48 of the Act of 1903 provision is made for the transmission to the Local Government Board of a return showing the amounts paid as instalments or annual payments or appropriated or paid to any sinking fund in pursuance of that Act or in respect of any money raised thereunder and sub-section (2) of Section 19 of the Act of 1907 extends and applies the provisions of Section 48 of the Act of 1903 to all sums borrowed or to be borrowed by the Council for the purposes mentioned in sub-section (1) of Section 19 of the Act of 1907;

10 Edw. 7 &
1 Geo. 5.
c. lxxxii.

And whereas by the Pontypridd Order 1910 (herein-after referred to as "the Order of 1910") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1910 provision is made with respect to the raising and repayment of moneys borrowed under that Order;

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxli.]
Provisional Orders Confirmation (No. 2) Act, 1911.

And whereas it is expedient that the Council be empowered to borrow money for the purpose of providing working capital for their electricity undertaking and the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Acts in the manner herein-after set forth:

A.D. 1911.

Pontypridd
Order.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I.—(1) The Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow such moneys as may from time to time be required for the purpose of providing working capital for their electricity undertaking.

Additional
borrowing
powers for
electricity
undertaking.

(2) Notwithstanding anything contained in Section 25 of the Act of 1907 the moneys which the Council may borrow under subdivision (1) of this Article may be borrowed upon the security of the revenue of the electricity undertaking and of the district fund and general district rate of the District or upon either of those securities.

Security for
additional
borrowing
powers.

Art. II. The moneys borrowed under Article I. of this Order shall be repaid within such period not exceeding ten years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Local Loans Act 1875 and of Articles IV. V. and VI. of the Order of 1910 as applied by this Order.

Period for
repayment
of borrowed
moneys.

Art. III. The provisions of Section 48 of the Act of 1903 and of Articles II. IV. V. VI. VII. VIII. and X. of the Order of 1910 shall apply as if those provisions were herein re-enacted and in terms made applicable to the moneys borrowed under this Order and otherwise to the purposes of this Order and as if in the application of the said Section 48 those moneys were moneys raised for the purposes of the Electric Lighting Act 1882 or of the Pontypridd Electric Lighting Order 1901.

Repay-
ment &c. of
borrowed
moneys.

Art. IV. This Order may be cited as the Pontypridd Order 1911. Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-first day of March One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

[Ch. cxli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

EAST DEAN AND UNITED DISTRICTS JOINT
HOSPITAL DISTRICT.

*East Dean
and United
Districts
Order.*

*Provisional Order for forming a United District under
Section 279 of the Public Health Act 1875.*

To the Urban District Council of Awre;—

To the Urban District Council of Newnham;—

To the Urban District Council of Westbury on Severn;—

To the Rural District Council of East Dean and United
Parishes;—

And to all others whom it may concern.

38 & 39 Vict.
c. 55. WHEREAS the district councils named in column 2 of the Schedule
to this Order are the local authorities within the meaning of the
Public Health Act 1875 for the districts named in column 1 of that
Schedule :

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 279 of the said Act and by any
other Statutes in that behalf do hereby order as follows viz.,—

Definitions.

Art. I. In this Order—

- (1) The expression “the appointed day” means the date of the
Act of Parliament confirming this Order;
- (2) The expression “the Schedule” means the Schedule to this
Order;
- (3) The expression “the Act” means the Public Health Act
1875;
- (4) The expression “Constituent District” means a district
named in column 1 of the Schedule and the expression
“Constituent Districts” means all the districts so
named;
- (5) The expression “Constituent Authority” means a district
council named in column 2 of the Schedule and the
expression “Constituent Authorities” means all the
district councils so named;
- (6) The expression “the Joint Board” means the governing
body of the United District to be formed in pursuance
of this Order.

Commence-
ment of
Order.

Art. II. This Order shall come into operation from and after the
appointed day.

Formation
of district.

Art. III. The Constituent Districts shall be formed into a United
District to be called the East Dean and United Districts Joint Hospital

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxli.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious diseases.

*East Dean
and United
Districts
Order.*

Art. IV. The Joint Board shall consist of one ex-officio and twelve elective members and shall be called the East Dean and United Districts Joint Hospital Board.

Constitution
of governing
body.

Art. V. The ex-officio member shall be the person described in Column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Ex-officio
and elective
members.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

Number and
qualification
of elective
members.

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.

Disqualifica-
tions for
members.
56 & 57 Vict.
c. 73.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.

Date of first
election.

Art. IX. The Clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Notification
to Local
Government
Board of
members
first elected.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Tenure of
office of
members.

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject

[Ch. cxli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

*East Dean
and United
Districts
Order.*

Supply of
vacancies.

to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Meetings.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board five members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at the extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

Committees.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval. Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

Appoint-
ment and
remunera-
tion of
officers.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who shall subject to the provisions of Articles VII. and X.

of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite. The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

A.D. 1911.

*East Dean
and United
Districts
Order.*

Art. XIV.—(1) Persons shall be admitted into a hospital provided by the Joint Board in any of the following modes and not otherwise except with the consent of the Constituent Authorities viz.,—

Mode of admission into hospitals.

- (a) By an order of the Joint Board or of a Constituent Authority ;
- (b) By an order of a medical officer of health of a Constituent Authority ;
- (c) By an order of a medical officer appointed by the Joint Board ; or
- (d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

(2) If the board of guardians of the Ross Union or of the Westbury-on-Severn Union and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from that board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under those sections so far as the same are applicable viz.,—

Powers rights duties &c. of Joint Board.

Of the Act :—

Sections 122 123 131 and 132 relating to infectious diseases and hospitals.

Sections 173 and 174 (except subsection 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

[Ch. cxli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

*East Dean
and United
Districts
Order.*

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267 and Section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

47 & 48 Vict.
c. 74.

Of the Public Health (Officers) Act 1884 :—

Section 2.

48 & 49 Vict.
c. 53.

Of the Public Health (Members and Officers) Act 1885 :—

Section 2.

Power of
Local
Government
Board to
make regu-
lations for
prevention
of epidemic
diseases.

Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "prevention of epidemic diseases" be a local authority so as to enable the Local Government Board by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Local Government Board from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority so far as the same may be required to be exercised in pursuance of the said regulations.

Saving hos-
pital powers
of Consti-
tuent Autho-
rities till
hospital
provided.

Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the use of the inhabitants of their district.

Notice of pro-
visions as to
recovery of
cost of main-
tenance.

Art. XVIII. A copy of Section 132 of the Act shall be exhibited in a conspicuous place at the principal entrance of the hospital or hospitals.

Expenses of
Joint Board.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

(2) To the common fund so far as the same is not provided by the aforesaid payments the Constituent Authorities respectively shall contribute in the manner provided by Section 283 of the Act.

A.D. 1911.

*East Dean
and United
Districts
Order.*

Art. XX. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Inspection
of accounts.

Art. XXI. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

Auditor's
report and
abstract of
accounts.

Art. XXII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Power of
Local
Government
Board to
adapt pro-
visions of
Order on
alterations of
Constituent
Districts.

Art. XXIII. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions.

Settlement of
differences.

Art. XXIV. This Order may be cited as the East Dean and United Districts Joint Hospital Order 1911.

Short title.

[Ch. cxli.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1911.

A.D. 1911.

The SCHEDULE above referred to.

*East Dean
and United
Districts
Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Urban District of Awre.	The Urban District Council of Awre.	—	—	2
The Urban District of Newnham.	The Urban District Council of Newnham.	—	—	2
The Urban District of Westbury on Severn.	The Urban District Council of Westbury on Severn.	—	—	2
The Rural District of East Dean and United Parishes.	The Rural District Council of East Dean and United Parishes.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act then the Vice-Chairman of the Rural District Council.	6

Given under the Seal of Office of the Local Government Board
this Tenth day of April One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
K. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.